IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 405
CP(CAA)/03/ND/2025

IN THE MATTER OF:

M/S Brightsun Equity Finvest Private Limited And M/S Everglow Equity Leasing Private Limited. .... Applicant

Under Section 230 - 232 of the Companies Act 2013.

Order delivered on 16.09.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant	:	Adv. Iswar Mohapatra and Adv. Markandey Kumar Singh Counsel for Applicant Companies.
For the Income Tax Department	:	Mr. Puneet Rai,SSC, Mr. Ashvini kr, Mr. Rishabh Nangia, Mr. Gibran Naushad, Mr. Nikhil Jain, Pratham Agarwal Advs.

ORDER

Ld. Counsel for the Applicant is present physically. Ld. Counsel for the Income Tax Department is present through VC.

Ld. Counsel for the Income Tax Department submitted that they have already filed the report with regard to transferor company nos.1, 2, 4 & 6 and with regard to transferor company nos.3 & 5, he seeks some time to take instructions from the concerned official.

This Tribunal vide order dated 29.07.2025 had directed the Income Tax Department to file report with regard to transferor companies within a week's time.

Report of Income Tax Department with regard to transferor company nos.1, 2, 4 & 6 are on board. With regard to transferor company no.3 & 5, the report of the Income Tax Department is not on board. It is presumed that Income

Tax Department has no representation to make for the transferor company nos.3 & 5.

Ld. Counsel for the applicant submitted that they have already filed an undertaking.

Applicant is directed to serve the copy of the undertaking to the Ld. Counsel for the Income Tax Department.

List on **04.11.2025** for further orders.

Sd/-	Sd/-
ATUL CHATURVEDI	**MANNI SANKARIAH SHANMUGA SUNDARAM**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**